

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPA026391: MORRIS EASTHAM, et al. vs COUNTY OF VENTURA, et al.
09/16/2026 in Department 43
Motion for Trial Preference**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion for Trial Preference.

Tentative Ruling: Motion for Trial Preference is DENIED without prejudice.

Under Code of Civil Procedure § 36.5, an attorney is permitted to sign an affidavit or declaration in support of a CCP §36 (a) motion based on "information and belief," but only as to the medical diagnosis and prognosis of the party. The declaration of Rebecca E. Neubauer quotes this exception to the rules of evidence but for the most part disregards it.

The declaration of Ms. Neubauer states only a limited medical diagnosis (lumbar spondylosis) and no prognosis as contemplated by § 36.5. There is no explanation of how this limited diagnosis has a prejudicial effect on his participation. The declaration uses vague terms such as, "decline in physical and emotional wellbeing," "stress level increases," "resolve deteriorates" which are subjective, speculative, and fail to provide a factual link showing that plaintiff suffers from a health condition such that preference is necessary to prevent prejudicing the plaintiff's interest in the litigation. This vague terminology is not the equivalent of a medical diagnosis or prognosis.

An attorney can only rely on "information and belief" for the narrow medical exceptions carved out by CCP § 36.5. Statements regarding the plaintiff's subjective state of mind such as, "Plaintiff is concerned about the impact..." are inadmissible hearsay. Because Ms. Neubauer cannot have personal knowledge of the plaintiff's internal feelings, these statements violate CCP § 2015.5 and the California Evidence Code and are not admissible evidence.

There being insufficient admissible evidence before the Court, the motion is denied.

Moving party is ordered to serve notice of the Court's ruling.